

HOUSE No. 3526

The Commonwealth of Massachusetts

PRESENTED BY:

Paul McMurtry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to large-scale solar energy installations on agricultural or recreational land of the Commonwealth.

PETITION OF:

NAME:

Paul McMurtry

DISTRICT/ADDRESS:

11th Norfolk

DATE ADDED:

1/17/2025

HOUSE No. 3526

By Representative McMurtry of Dedham, a petition (accompanied by bill, House, No. 3526) of Paul McMurtry relative to large-scale solar energy installations on agricultural or recreational land of the Commonwealth. Telecommunications, Utilities and Energy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3190 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to large-scale solar energy installations on agricultural or recreational land of the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 25A of the General Laws is hereby amended by adding the following section:-

2 Section 18. (a) For the purposes of this section, the following words shall, unless the
3 context clearly requires otherwise, have the following meanings:-

4 “Agricultural land”, land owned by the commonwealth or any state agency or
5 instrumentality of the commonwealth or any political subdivision thereof, including a local
6 governmental body, and utilized for an active or passive agricultural use or horticultural use.

7 “Large-scale solar energy installation”, a ground-mounted solar energy system or solar
8 photovoltaic system installation that occupies more than 5 acres of total surface area.

9 “Recreational land”, land owned by the commonwealth or state agency or instrumentality
10 of the commonwealth or any political subdivision thereof, including a local governmental body,
11 and utilized for an active or passive recreational use including, but not limited to, the use of land
12 for community gardens, trails and noncommercial youth and adult sports, and the use of land as a
13 park, playground or athletic field.

14 “Solar energy system”, a device or structural design feature, a substantial purpose of
15 which is to provide daylight for interior lighting or provide for the collection, storage and
16 distribution of solar energy for space heating or cooling, electricity generation or water heating.

17 “Solar photovoltaic system”, an active solar energy system that converts solar energy
18 directly into electricity.

19 (b) Notwithstanding any general or special law to the contrary, no large-scale solar
20 energy installation shall be installed on agricultural land or recreational land unless the
21 commissioner certifies that land of like kind and quantity will be dedicated to use as agricultural
22 land or recreational land. The commissioner shall record the certification in the registry of deeds
23 not less than 30 days prior to the installation of the large-scale solar energy installation. The
24 certification shall identify the parcel to be on which large-scale solar energy installation will be
25 installed and the parcel to be dedicated to agricultural land or recreational land.